

R E M A R K S
O N T H E
S P E E C H E S
O F

William Paul Clerk,

A N D

John Hall of Otterburn, Esq;

Executed at Tyburn for Rebellion, the 13th
of July, 1716.

In which the Government and Administration
both in Church and State, as founded upon
the Revolution, are Vindicated from the Treasonable
Reflections and false Aspersions thrown upon them
in those Speeches, which are inserted at length, as they
were deliver'd to the Sheriffs.

L O N D O N,

Printed for J. BAKER and T. WARNER at the *Black
Boy* in Pater-noster-Row. M. DCC. XVI.

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*** START OF THE PROJECT GUTENBERG EBOOK REMARKS ON
THE SPEECHES OF WILLIAM PAUL CLERK, AND JOHN HALL OF

OTTERBURN, ESQ ***

**REMARKS
ON THE
SPEECHES
OF
William Paul, Clerk,
AND
*John Hall of Otterburn, Esq;***

Executed at *Tyburn* for Rebellion, the 13th of *July*, 1716.

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**REMARKS *on the Speech of* William Paul,
Clerk.**

INTRODUCTION.

ANY Judicious Man, who will be at the pains attentively to read the following Speeches, and compare them with the Papers left by Lord *Derwentwater*, Colonel *Oxburgh*, and the other Rebels lately executed, must soon be convinc'd, That they all proceed from the same Mint, and are fram'd on purpose to spirit up the Faction to a New Rebellion.

There's such an Uniformity in the Stile, Matter, and Way of Arguing, as sufficiently proves this; so that instead of being the Speeches of the deceas'd Rebels, they plainly appear to be the Composure of others, who endeavour to serve the Cause not only at the Expence of those poor Mens Reputation, but even of their Souls, by prevailing upon them to deliver such Papers as their dying Sentiments, and the Result of their own Thoughts.

This is very plain in the Case of Mr. *Hall*, who being ask'd at the Place of Execution, if the Paper he deliver'd was writ by himself, he avoided giving a direct Answer, and only said it contain'd his Sentiments; tho 'tis highly probable he never carefully read it, if we consider the notorious Falshood which he is made to assert, *That the Rebels conquer'd the King's Troops at Preston*.

Besides, he and Mr. *Paul* were so far from being stedfast to the Pretender's Interest, as is given out in the Speeches, and so little fond of what they call Martyrdom, that 'tis very well known they us'd all possible Endeavours to save their Lives, would have disown'd the Pretender's Claim, and renew'd their Oaths to the Government, could they have obtain'd their Pardon on that Condition. The Speech-makers were not ignorant of this, but they resolv'd to delude the unthinking Populace, and to make those Men pass for Valiant and Glorious Martyrs; tho, in truth, they liv'd and dy'd the most hateful Dissemblers, both with God and Man, that ever were heard of.

But to come to the Speeches themselves.

Mr. *PAUL*'s SPEECH.

Good People, I am just going to make my Appearance in the other World, where I must give an Account of all the Actions of my past Life: and tho I have endeavour'd to make my Peace with God, by sincerely repenting of all my Sins, yet forasmuch as several of them are of a Publick Nature, I take it to be my Duty to declare here, in the Face of the World, my hearty Abhorrence and Detestation of them.

REMARKS.

'Tis easy to perceive that this Paragraph is calculated to gain Credit to what he was afterwards to say; but the judicious Reader will discover the Artifice, and that the Author is far from being ingenuous. 'Tis very odd, in a Protestant Divine, to talk of *making his Peace with God, by a sincere Repentance of all his Sins*, and not say one Word of Faith in the Merits of Jesus Christ; without which, Repentance can neither be sincere nor perfect. This looks so like the Popish Doctrine, that Penance is a sufficient Atonement for Sin, as gives every one just Cause to suspect the Author's Religion.

He takes notice, that several of his Sins were of a Publick Nature, and that he thought it his Duty to declare his hearty Abhorrence and Detestation of them in the Face of the World; but how much he juggled in this Matter, will be evident by the two following Paragraphs, and the Reflections upon them.

The SPEECH.

And first, I ask Pardon of God and the King, for having violated my Loyalty, by taking most abominable Oaths in Defence of Usurpation, against my Lawful Sovereign King James the Third.

And as I ask Pardon of all Persons whom I have injur'd or offended, so I do especially desire Forgiveness of all those whom I have scandaliz'd by pleading Guilty. I am sensible that it is a Base and Dishonourable Action; that it is inconsistent with my Duty to the King, and an entire Surrender of my Loyalty. Human Frailty, and too great a Desire of Life, together with the Persuasions of several who pretended to be my Friends, were the Occasion of it. I trust God of his infinite Mercy, upon my sincere Repentance, has forgiven me; and I hope all good Christians will.

REMARKS.

Since the Author owns, that several of his Sins were of a Publick Nature, he ought to have been very particular and exact in the Enumeration of them; but he mentions only two, viz. his taking what he calls most abominable Oaths in Defence of Usurpation, and his pleading Guilty to his Indictment.

He must be a very superficial Reader, who does not observe, that these things, which Mr. *Paul* calls Sins, were attended with others of as heinous and publick a Nature; of which he says not one Word. For his taking the Oaths, if he thought them abominable, was not only a Crime against his pretended Lawful Sovereign, King *James III.* but a dreadful mocking of God, and treacherous Imposition upon the present Government, and his Country; and so much the more, that he continu'd in this abominable Practice till the time the Rebellion broke out: and it was aggravated by this heinous Circumstance, That he went from the very Pulpit in which he preach'd by the Authority of the present Government, to join those who rose in Arms against it. Had he been a sincere Penitent, such hateful Prevarication with God and Man must have star'd him in the Face, and call'd for an express and humble Acknowledgment of it; whereas he confines his Repentance to what he did against the Loyalty which he fancies he ow'd the Pretender.

One might have expected, from a true and ingenuous Penitent, an Account of the Reasons why he calls the present Government an Usurpation: for tho perhaps he might think, that the Word of a dying Priest was Authority enough for the Bigots of his Party, he ought to have consider'd, that others would expect very strong and convincing Arguments to prove, that his single Judgment should be prefer'd not only to that of our present Legislature, but of all our Parliaments; who, ever since we were a Nation, have asserted it to be their indisputed Right to dethrone Tyrants, and to settle the Succession in such a manner as they thought most conducive to preserve the Liberties of the People. Nothing can be more evident than this in all our Histories and Acts of Parliament before the Reformation; and he must have been prodigiously ignorant, if he did not know that. It has been the Practice, as well as the Principle of the Church of *England* since she became Protestant: For all the World knows, that in the beginning of the Reformation, under *Henry VIII.* she own'd the Power of Parliaments, in settling the Succession, about which there were several Acts made in his

Reign. In that of his Son, King *Edward VI.* it appears plain enough that the leading Protestants were of the same mind, when they agreed to set aside his Popish Sister Queen *Mary*, and to settle the Crown on Lady *Jane Grey*. And 'tis as well known, that the famous Martyr, Bishop *Ridley*, did openly preach against Queen *Mary's* Title, at *Paul's-Cross*.

In Queen *Elizabeth's* Reign it appears, by the Records of Parliament, that the Bishops of the Church of *England* did unanimously agree not only to set aside the Title of *Mary* the Popish Queen of *Scots*, who was next Heiress to the *English* Crown; but also to take off her Head, because of her Plots against Queen *Elizabeth*. 'Tis no less evident, from the History of that Reign, That the Bishops and Clergy of *England* enabled the Queen, by their Purses and otherwise, to support the Protestants of *France* and the *Netherlands*, who had taken Arms against their Tyrannical Sovereigns; and also those of *Scotland*, who had dethron'd the Mother, and set up the Son. In the Reign of King *James I.* the Church of *England* concurred in like manner to support the Protestants of the *United Netherlands* and *Germany* against their Tyrannical Princes; and they continu'd the same Endeavours in the Reign of King *Charles I.* when even Archbishop *Laud*, the Idol of our High-Church Clergy, concurred in granting Subsidies for the Support of the *French* Protestants, who were in Arms against their persecuting Sovereign. What the Church of *England* did towards dethroning King *James II.* for his Tyranny, is too late to be forgot; and Mr. *Paul* cannot but know, that she annually thanks God in her Office on the 5th of *November*, for bringing over the Prince of *Orange*, and making all Opposition fall before him, till he became our King and Governour. This, no doubt, he frequently concurred in; and had his Jacobite Repentance been sincere, he ought to have acknowledg'd that as publickly as the other things, which he thought it his Duty to declare in the Face of the World.

Upon the whole, it appears to be of too great Importance for the Speech-makers to think, that Mr. *Paul's* bare Assertion, without any Argument, was sufficient to weigh down such a Train of Authorities.

His begging Pardon of those whom he has scandaliz'd by pleading Guilty, is the Form which the Ghostly Fathers of the Rebels have put into all their Mouths; as appears by Lord *Derwentwater's* Speech, &c. But since he calls this a base and dishonourable Action, inconsistent with his Duty to the King, and an entire Surrender of his Loyalty; it deserv'd a greater Act of

Contrition, than to ascribe it barely to human Frailty, a too great Desire of Life, and the Persuasion of pretended Friends. Here again he shews himself a very loose Protestant, when he relies upon his own Repentance, without one word of our Saviour's Merits for a Pardon at the hands of God.

The SPEECH.

You see, my Countrymen, by my Habit, that I die a Son, tho a very unworthy one, of the Church of England: but I would not have you think that I am a Member of the Schismatical Church, whose Bishops set themselves up in opposition to those Orthodox Fathers, who were unlawfully and invalidly depriv'd by the Prince of Orange. I declare that I renounce that Communion, and that I die a Dutiful and Faithful Member of the Nonjuring Church; which has kept it self free from Rebellion and Schism, and has preserv'd and maintain'd true Orthodox Principles, both as to Church and State. And I desire the Clergy, and all Members of the Revolution-Church, to consider what Bottom they stand upon, when their Succession is grounded upon an Unlawful and Invalid Deprivation of Catholick Bishops; the only Foundation of which Deprivation, is a pretended Act of Parliament.

REMARKS.

Here's a new Discovery, for which the World is oblig'd to the Speech-makers, that the Habit makes a Son, or a Priest, of the Church. It had been well for the She-Comedian, who acted *Roxellana*, that this Doctrine had obtain'd in the Reign of King *Charles II.* for then she might have been a Countess without Dispute, and her Son Heir to an antient Earldom, because she was marry'd to an Earl by his Coachman in a Priest's Habit. Parson *Paul* might also have been better inform'd by his good Friends the Papists, among whom 'tis a common Proverb, *Cuculla non facit Monachum*, That the Coul does not make a Monk: but the plain Design of this Paragraph is to incense the Mob against the Government, as if they were going to hang up the Church. That was the Reason why Mr. *Paul* went to *Tyburn* in his Priest's Vestments, which he needed not have done. We know the time when the Clergy took a great deal of Care to prevent such a Scandal to their Cloth, and that was when they degraded the Reverend Mr. *Sam. Johnson*, before he was whipt, for writing against Popery and Tyranny; tho he had more Honesty, and a better Title to his Orders, than any of those who

pretended to take them from him. But this lets us see where the Blame lies, if carrying Mr. *Paul* to *Tyburn* in his Priest's Vestments was a Disgrace to the Church. There are some in the World, who think the Character of a Jacobite Priest indelible, tho they did not think so of that Brave and Learned Patriot, Mr. *Johnson*. But however that is, 'tis no more Reflection upon the Government, that Priests should be hang'd in their Habit, than kill'd in the Field for Rebellion; and this we may venture to say, that Parson *Paul* dishonour'd the Habit more by wearing it in the Pulpit, than at the Gallows.

At the same time his Friends have a very good way to make themselves amends, by laying up his Vestments with those of St. *Garnet* and *Faux*, where the Bigots may adore them as precious Relicks; and perhaps this was the reason why the Parson would not die in a Lay-Habit, tho he was disguis'd in one, when taken up for his Treason.

The World is farther oblig'd to this Priest, for another important Discovery; to wit, that he was not a Member of the Schismatical Church, but dy'd a dutiful and faithful Member of the Nonjuring Church of *England*, which has kept it self free from Rebellion and Schism, and has preserv'd and maintain'd true Orthodox Principles, both as to Church and State. The Folly and Inconsistency of this Declaration is evident at first View, and the Malice of it is what ill became a dying Man. 'Tis well enough known that he liv'd a *Priest*, tho he did not die a *Member*, of what he call'd the Schismatical Church; and he continu'd in her Communion till he went to join the Rebels at *Preston*. This is another of his publick Sins, which he forgot in his Enumeration of 'em in the beginning of his Speech; but he thinks to atone for that, by renouncing her Communion at Death.

'Tis pleasant to hear his Reasons for calling the Establish'd Church Schismatical, and that is, because her Bishops set themselves up in opposition to those Orthodox Fathers, who were unlawfully and invalidly depriv'd by the Prince of *Orange*. So that according to him the Church of *England* is Schismatical, Republican, and Antimonarchical, as well as Dissenters: but had the Speech-maker's Head been cool, he would have consider'd, that his Argument, were it conclusive, could not make all the Establish'd Church Schismatics, but only those Bishops who came in place of his depriv'd Orthodox Fathers, and such as liv'd under them; now all those Bishops being dead, the Schism, according to Mr. *Dodwell*, the grand Champion of the Party, ceas'd with them. By this we see, that the

Party has no fix'd Principle; for tho they applauded that Author, and look'd upon him as their Oracle, yet now they differ from him: so that we find it to be true of this Set of People, That evil Men and Seducers grow worse and worse.

The Parson equally discovers his Malice and Ignorance, by finding fault with that Deprivation; for had he ever read the Statute of Provisors, made in the 25th of King *Edward* III. he might thereby have known, 'That the Church of *England* was founded in the Estate of Prelacy, by the Kings, Earls, Barons, and other Nobles of this Realm, to inform them and the People of the Law of God, &c. And that certain Possessions, as well in Fees, Lands, Rents, as in Advowsons, which do extend to a great Value, were assign'd by the said Founders to the Prelates, &c.' And since it is so, 'tis a known Maxim in Law and Reason, That they who have a power to make, have a power to unmake: and it will be acknowledg'd as a very good reason all over the World, to deprive such Prelates as refuse to swear or give Allegiance to the Government, that founded their Prelacys, and protects their Persons.

He might also have seen, by the 5th of the 25th of *Henry* VIII. that the Bishops of *Salisbury* and *Worcester* were depriv'd, because not regarding their Duties to Almighty God, nor the Cures of their Bishopricks, they dwelt at *Rome*, and other Parts beyond Sea, &c. And the Reason given for this Power, then exercis'd by the King and Parliament, is the same with that already mention'd in the Statute of Provisors. Besides, every one knows, that in King *Henry* VIII. and King *Edward* VI's Time, the Bishops held their Commissions only during the Pleasure of the Prince, and as his Delegates.

If the Speech-maker's Friends object, that this relates only to the Temporalities of the Bishops, 'tis answer'd, that in the Commission taken out by Archbishop *Cranmer* for his Archbishoprick, his Power of ordaining and turning out Presbyters, is also deriv'd from the King. The Commission is at large in Dr. *Burnet's* History of the Reformation, Collection of Records, p. 90.

But perhaps the Example of that Excellent Primate and Martyr won't have much weight with the High-Church Party; therefore I shall give them one of Bishop *Bonner*, who was as Bloody and High a Churchman as any of

themselves. He took out a Commission from King *Henry VIII.* in the Preamble of which 'tis asserted, 'That since all Jurisdiction, both Ecclesiastical and Civil, flow'd from the King as Supreme Head, and he was the Foundation of all Power; it became those who exercis'd it only at the King's Courtesy, gratefully to acknowledg that they had it only of his Bounty, and declare that they would deliver it up again when it should please him to call for it.' The Commission is exhibited at large in Dr. *Burnet's History of the Reformation*, Vol. 1. Collection of Records, N^o 14.

'Tis true, that the way of giving Temporary Commissions to Bishops for the Exercise of their Episcopal Power, is now laid aside: but since that Power is still deriv'd from the Sovereign, by virtue of a *Conge d'Eslire*, 'tis impudent in our High Church Priests to complain of the Deprivation of the Nonjurant Bishops by King *William* and his Parliament; especially if we consider, that Bishops were antiently chosen in Parliament, till the time of *Henry I.* and that 'tis by Act of Parliament our Princes were impower'd to erect and confer Bishopricks; as appears by 31 *H. VIII. c. 9. & 13.* and by the 37th of his Reign, *c. 17.* 'tis declar'd, 'That Archbishops, Bishops, Archdeacons, and other Ecclesiastical Persons, have no manner of Jurisdiction Ecclesiastical, but by and under the King, the only undoubted Supreme Head of the Church of *England.*'

By the 25th *Henry VIII. c. 20.* the Chapter is oblig'd in twelve Days to chuse the Person nam'd by the King in the *Conge d'Eslire*; if they do not, his Nomination is sufficient: and the Archbishop and Bishops, to whom the King's Signification is directed, are oblig'd to consecrate the Elect within twenty Days, as well as the Chapter is to present him, on pain of a *Premunire*.

Yet tho the *English* Prelacy is so plainly a Creature of the State, and enjoys all its Power and Revenues from it; our High Church Priests are so traitorous and unconscionable, that they would have the Bishops to enjoy part of the Legislature as an Estate by themselves, and be capable of Posts of State, and of Ecclesiastical and Civil Power, without any Dependence on the State: which, instead of one Pope over *Christendom*, is to set up twenty six Independent Popes in *England*, and run both Church and State into Anarchy and Confusion.

It is in vain for them to alledg, that they dispute King *William's* Power, because he was not a Lawful King; for we have heard already, that by the antient Constitution of *England*, our Parliaments always asserted their Power to dethrone Tyrants, and to set up such in their stead as would maintain the Nation's Privileges.

The Speech enumerates so many sorts of Churches of *England*, that it will be hard to tell, according to the Notions of the Faction, how many they will come to at last. Here's a Schismatical Church of *England*, a Nonjuring Church of *England*, a Revolution Church of *England*; he might have added a Perjuring Church of *England*, of which he himself, and his Fellow Criminal Mr. *Hall* were noted Members. 'Tis ridiculous to assert, that the Nonjuring Church has kept it self free from Rebellion; for all the World knows, that the Men of that Stamp begun what he calls the Rebellion against the late King *James*, and they have been Rebels to all our Sovereigns ever since: so that if any Set of Men in the Island deserve to be call'd Rebellious and Antimonarchical, 'tis they. Was it not for Rebellion, that Mr. *Paul* and others of his Party have lost their Lives? We know indeed, that not only the Nonjurors, but even some others of the Church of *England*, are shy of calling it Rebellion; yet 'tis so in the Eye of the Law, and in the Opinion of all those Powers in *Europe*, who have own'd his Majesty's Title. Then let the World judg, whether Parson *Paul's* Authority or theirs, is most to be rely'd on.

'Tis perfectly ridiculous then to alledg, that the Nonjuring Church has kept it self free from Rebellion and Schism, when they have not only been in a Course of Rebellion ever since the Revolution, but separated from their Brethren, and set up private Conventicles, as well as disown'd the Head of the Church: which certainly makes them Schismatics in the highest sense. Nor is there a Protestant Church in the World at this day, whose Communion they don't reject. They may talk then of being Catholick as long as they please, but they can be so in no other sense than that they are for a Roman Catholick Prince, and for such an Union with the Church of *Rome*, as is betwixt her and the Church of *France*; which Mr. *Lesley*, the Pretender's Chaplain, and one of his Bishops, propos'd long ago in his *Pontificate and Regale*.

Mr. *Paul* seems miserably to have forgot himself, in saying that he dy'd a dutiful and faithful Member of the Nonjuring Church, when the World

knows that he continu'd a Member of the Establish'd Church till the Rebellion begun; and it can be prov'd, that he wou'd have been glad to have continu'd so, and to have own'd the present Government a very little before his Death, tho the Speech calls it a Usurpation, could the Promises and Oaths of such a perfidious Wretch been rely'd upon, or thought worthy of being accepted.

The SPEECH.

Having ask'd Forgiveness for my self, I come now to forgive others. I pardon those, who under the Notion of Friendship persuaded me to plead Guilty. I heartily forgive all my most inveterate Enemies, especially the Elector of Hannover, my Lord Townshend, and all others who have been instrumental in promoting my Death. Father, forgive them! Lord Jesus, have mercy upon them, and lay not this Sin to their Charge.

REMARKS.

After he has rail'd at the Church and State, he pretends that he has ask'd Forgiveness for himself, and comes to forgive others; and first, those who under the Notion of Friendship persuaded him to plead guilty. 'Tis common, we see, for those who are false themselves, to call others False Brethren; yet 'tis evident by the Clemency shew'd to others who pleaded guilty, that those who advis'd him to do so, were his best Friends: but since there were such Aggravations in his Case and Character, as made him unworthy of the like Favour, his Blood lies on his own Head.

His way of forgiving others is very extraordinary, when he calls them with his dying Breath his most inveterate Enemies; and among those, he points out the King, under the Title of Elector of *Hannover*, and my Lord *Townshend*. This smells of so much Rancour, that it is not reconcilable with the Spirit of Christianity, and at the same time it shews the height of Prevarication with God and Man; since in his Applications for Mercy he gave the King his Royal Titles (which he now denies him) and him whom he call'd his King at the Gallows, he thought fit to call a Pretender in his Petitions. His pointing at my Lord *Townshend* in such a particular manner, is to mark out that Noble Lord to the Fury of the *Jacobite* Mobs; a piece of Revenge that is abominable in any Man, but execrable in a dying Minister, who knew that my Lord *Townshend* could not in Faithfulness to the King behave himself any otherwise than he did, or become an Intercessor for a

Man of so vile a Character, as Mr. *Paul* appears to have been, to all that know him. But the Spirit of Rage and Malice, by which the Parson was acted to the last, will further appear by the following Paragraph, and the Reflections upon it.

The SPEECH.

The next thing I have to do, Christian Friends, is to exhort you all to return to your Duty. Remember that King James the Third is your only Rightful Sovereign, by the Laws of the Land, and the Constitution of the Kingdom. And therefore if you would perform the Duty of Justice to him, which is due to all Mankind, you are oblig'd in Conscience to do all you can to restore him to his Crown: For it is his Right, and no Man in the World besides himself can lawfully claim a Title to it. And as it is your Duty to serve him, so it is your Interest; for till he is restor'd, the Nation can never be happy. You see what Miseries and Calamities have befallen these Kingdoms by the Revolution; and I believe you are now convinc'd, by woful Experience, that swerving from God's Laws, and thereby putting your selves out of his Protection, is not the way to secure you from those Evils and Misfortunes which you are afraid of in this World. Before the Revolution, you thought your Religion, Liberties, and Properties in Danger; and I pray you to consider how you have preserv'd them by Rebelling. Are they not ten times more precarious than ever? Who can say he is certain of his Life or Estate, when he considers the Proceedings of the present Administration? And as for your Religion, is it not evident that the Revolution, instead of keeping out Popery, has let in Atheism? Do not Heresies abound every day; and are not the Teachers of false Doctrines patroniz'd by the Great Men in the Government? This shews the Kindness and Affection they have for the Church. And to give you another Instance of their Respect and Reverence for it, you are now going to see a Priest of the Church of England murder'd for doing his Duty. For it is not me they strike at so particularly, but it is thro me that they would wound the Priesthood, bring a Disgrace upon the Gown, and a Scandal upon my Sacred Function. But they would do well to remember, that he who despises Christ's Priests, despises Christ; and he who despises him, despises him that sent him.

REMARKS.

After profaning the Name of our Saviour, by seeming to pray that he would forgive those who had been instrumental in promoting Mr. *Paul's* Death; the Speech-maker gives himself the lye, by exciting his Auditors to a new Rebellion: and the Motives he uses for it are only a parcel of vulgar Topicks and bold Assertions, suited to the Taste of the *Jacobite* Mob, without one word of Argument to support his Propositions; for he knew the Credulity of the High-Church Faction, and that if he cou'd prevail upon them to exert themselves for the Pretender, they wou'd not fail in their usual brutish manner to attempt a Revenge on those, whom he points out as his own and the Pretender's Enemies.

'Tis remarkable however, that he does not offer one Law or Text to justify the Pretender's Claim, which he so positively asserts, but goes on with a pitiful Declamation, to persuade them to a new Rebellion, from the Topicks of Interest. And he insists upon the Calamities that have befallen these Kingdoms by the Revolution, without giving one Instance of those Calamities. We may see the Hand of the Jesuit in this way of Reasoning; for crafty and knavish Men always betake themselves to Generals. In this he follows the Example of the *Holborn* Doctor, who did what he cou'd to blacken the Revolution, and the Methods made use of to effect it, by general Slanders, without offering at one particular Instance to justify what he says.

Nothing can more demonstrate the Infatuation of Mr. *Paul*, or those who made his Speech, than his telling the People that before the Revolution they thought their Religion, Liberties, and Properties in danger; and that instead of preserving them by Rebellion, they are now become ten times more precarious than ever. Had Satan appear'd in a visible Form, he cou'd not have utter'd any thing more deceitful and false. By this Instance 'tis plain, that the great Accuser of the Brethren triumphs in the Weakness, as well as the Wickedness of those he has deluded: For even the late Archbishop *Sancroft*, and other Patrons of the Nonjurant Party, give Mr. *Paul* the lye, as to the first part of his Proposition, and common Sense falsifies the latter. To prove this, we need only to observe, that *Sancroft* and the rest of the Bishops, who refus'd to read K. *James II's* Declaration for Liberty of Conscience, alledg'd that it was an Invasion upon our Civil and Religious Liberties. And because they set forth this in their Petition to that Prince, they were committed to the *Tower*, and brought to a Tryal as traitorous

Criminals: but to their good fortune, the Law, which they had formerly too much run down, prevail'd against that Arbitrary Power of the Prince, which they had so long preach'd up; and the Arguments which were made use of by the late Lord Chief Justice *Pollexfen*, Lord *Sommers*, and other Whigs, in behalf of the Constitution, prevail'd so far, that they were honourably acquitted. Upon which, Dr. *Sancroft* and his Brethren did so much resent these Tyrannical Proceedings of King *James II.* that they concur'd with others in the Happy Revolution: and Archbishop *Sancroft* himself, tho afterwards the Head of the Nonjuring Party, did take the Keys of the *Tower* from *Skelton*, K. *James's* Lieutenant, and join'd, with other Bishops afterwards Nonjurors, in a Declaration for applying to the Prince of *Orange*, on the 11th of *December* 1688, after King *James* had run away, to obtain a Parliament for securing our Laws, Liberties, Properties, and the Church of *England* in particular.

This is enough to shew, that the Heads of the Nonjurant Party were then convinc'd that our Religion, Liberties, and Properties were in Danger; which sufficiently confutes Mr. *Paul's* Insinuation, that they were not.

And as to the other part of his bold Assertion, that they are ten times more precarious now than ever, common Sense and Experience give him the Lye; for Thanks to God, we have now a Protestant, whereas we then had a Popish King on the Throne: and Malice itself can't say, that profess'd Papists are contrary to Law made Members of the Privy Council, Commanders in the Army, and obtruded upon our Universities, instead of Protestants illegally turn'd out, as was the Case in those days.

Besides, by the Revolution, which Mr. *Paul* thinks fit to call a Rebellion, we have obtain'd an irrevocable Law, that none who has been a Papist, is a Papist, or marries a Papist, shall from henceforth sit on our Throne; but that they shall always be of the Communion of the Church of *England*, as by Law establish'd. This is such a Security for our Religion, as *England* never had before. And as to our Civil Rights, Liberties, and Properties, we have, by the Declaration of Rights, enacted into a Law, such a Security, as our Ancestors never enjoy'd a better, nor can any Nation in *Europe* shew the like. With what face then could this dying Traitor say, that our Religion, Liberties, and Properties are ten times more precarious than ever? Certainly a Man who could thus appear before the Tribunal of

Heaven, with such a Lye in his Mouth, must have been judicially harden'd, and given up to a reprobate Sense.

As to his Question, Who can say he is certain of his Life or Estate, when he considers the Proceedings of the present Administration; it is brimful of the greatest Malice and Falshood, and utter'd on purpose to expose the Ministry to the Rage of the Jacobite Mobs; which shews us how sincere Mr. *Paul* was in his Professions to forgive his Enemies. But it is our Happiness that none of the Party can say, that the present Ministry pack Juries, or suborn Evidence, to swear Men out of their Lives and Estates, as the Tories always did when they sat at the Helm. Nor can Malice charge the present Ministry with bringing *Quo Warranto*'s, to deprive Corporations of their Charters, on pretence of having forfeited them by Tumults; as was practis'd in the Reigns of King *Charles* and King *James II.* notwithstanding the just occasion which the Faction has given for doing it every where, by such groundless and barbarous Tumults and Rebellions, as were never heard of in *England* before. As to the Security of our Lives and Estates, the Rebels themselves, who have been brought to Tryal, can bear Witness, that they have had the Benefit of the 7th of *William III.* which is more favourable and indulgent to Traitors, than the Laws of *England* before the Revolution; for by this Act they are allow'd a Copy of their Indictment five days, and a Copy of the Pannel two days before Trial, to make their Defence by Counsel, and Proof by Witnesses upon Oath. And the Court is oblig'd, on the Request of the Prisoners, to assign them Counsel, who are to have free Access to them; besides which, none can be try'd according to that Act, but on the Oath of two lawful Witnesses, either both to the same Overt-Act, or one to one Overt-Act, and the other to the other: which are all such Privileges as *Englishmen* never enjoy'd before the Revolution.

Since all this is evident by our Statute-Books, and by Matter of Fact, it plainly shews the Ignorance and Malice of Mr. *Paul* and his Speech-makers.

As to his other Insinuation, that the Revolution, instead of keeping out Popery, has let in Atheism, nothing but unparallel'd Impudence could have utter'd it. The late Bishop of *Sarum* did justly observe at *Sacheverel's* Trial, that nothing had so much contributed to the Growth of Atheism in the Nation, as the Clergy's playing fast and loose with Oaths: and as this was the avow'd Practice of Mr. *Paul* and his Party, to take Oaths to the Government, on purpose to undermine it, and to abjure the Pretender, while

at the same time they carry'd on his Interests; the Growth and Patronage of Atheism; is justly ascrib'd to his own Faction. There can be no stronger proof of this, than their Breach of solemn Leagues and Oaths, and making the late Queen *Anne* so notoriously contradict her self from the Throne. Besides, does not all the World know, that her Tory Ministry, and particularly two of her Secretaries of State, were guilty of the most avow'd Perjury? Were not the Generals of the Rebels, as well as he who betray'd the Confederate Armies to *France*, guilty of wilful Perjury? And were not many of the High-Church Members of the House of Commons, and the High-Church Clergy guilty of the like? Can any thing be a greater Proof of Atheism than wilful Perjury? Does it not deny the very Being, and all the Attributes of God Almighty? With what face then could this dying Traitor charge others with Atheism, of which he and his Party are so demonstrably guilty?

He seems to make a Distinction betwixt Atheism and Popery, and to give the latter the Preference, which is another Proof of his Ignorance and Malice; for every Man who has read the Casuistical Divinity of the Jesuits, which is the very Soul and Support of Popery, must needs know, that the whole Scheme of that Divinity is Atheistical: and therefore it has a long time been the Opinion of some of the ablest Protestant Divines, that it is next to impossible for a Man of Learning and Knowledge of the World to be a Papist, and not be an Atheist at the same time.

For Mr. *Paul*'s other Insinuation, that Heresies abound every day, and that the Teachers of false Doctrines are patroniz'd by the Great Men now in the Government, he ought to have given some well-known Instances to support his Assertion; but his Business was to slander: so that this needs no other Answer, than that it ill becomes those who preach and maintain the abominable Doctrines of Popery and Slavery, Heresies destructive to the Bodies and Souls of Men, to charge the Ministry with patronizing the Teachers of false Doctrines, merely because they won't break thro Law to gratify the persecuting Humour of High-Church, against Men who differ from their Brethren in some Matters of Speculation, or mere Circumstantials of Religion.

But the true Cause of all this Malice is, that Mr. *Paul* was now for his Rebellion brought to the Gallows, which he calls the Murder of a Priest of the Church of *England* for doing his Duty. We have heard before, that the

Practice for which he was condemn'd to be hang'd, is directly contrary to the Doctrine of the Liturgy of the Church of *England*; so that 'tis ridiculous as well as hateful for him to call a due Course of Law Murder. *Faux* and *Garnet*, when they were hang'd for the Gunpowder-Plot, and those who suffer'd in King *William*'s time for the Assassination, went out of the World with the like Reflections upon the Government; so that these being only Words of course from Rebels at the Gallows, they deserve no further regard.

Nothing can be more villanous and profane than the last part of this Paragraph, where he falsly asserts, that the Priesthood was struck at thro him, &c. How he could reckon himself a Priest, since he was ordain'd by a Schismatical Bishop in 1709, I can't tell; but be that how it will, 'tis never reckon'd a Disgrace to the Clergy in a Protestant Country, when any of that Order are justly executed for capital Crimes: nor was it reckon'd so even among his Brethren the Papists in *Spain* and *Catalonia*, where Priests were hang'd for Rebellion on both sides by the Houses of *Bourbon* and *Austria*, according as either prevail'd; but more especially by King *Philip*, since Mr. *Paul*'s Friends, the late Tory Ministry, betray'd the *Catalans*: and I suppose that no body will doubt that those two Royal Families have as great a Respect for the Order of the Priesthood, as our High Churchmen. It is true indeed, that the Pope, the Great High Priest, has always claim'd the sole Power of animadverting upon the Clergy, as his own proper Sons; but one of the most Christian Kings, who took a Bishop in Rebellion, with a Coat of Mail upon him, knew very well how to distinguish betwixt the Priest and the Rebel; and when the Pope demanded the Bishop to be set at liberty as one of his Sons, the *French* King sent his Holiness the Bishop's Armour, and bid him see whether that was his Son's Coat or no; making use of the vulgar *Latin* Translation in the Case of *Joseph*'s Coat that was sent to his Father, *Vide an hæc sit tunica filii tui?* Had Parson *Paul* gone to the Gallows with the Lay-Habit in which he rebell'd in *Lancashire*, and was taken up in *London*, it might have sav'd the Honour of the Gown, but it would have been no Argument for the Honesty of the Priest.

The Conclusion of this Paragraph is so very profane and blasphemous, that it can't be repeated without Horror. The Text here, misapply'd by Mr. *Paul*, was spoke with relation to our Saviour's Apostles, so that the Missionaries of Popery and Slavery have nothing to do with it. Our Saviour is represented by St. *John* the Divine, to walk in the midst of the seven

Golden Candlesticks; but those of Brass, like Parson *Paul*, who rebel against Christianity, in behalf of Antichristian Idolatry, have their Mission from the Pope and the Devil: so that a Man cannot be a good Christian, without despising them and him that sent them.

The SPEECH.

And now, Beloved, if you have any Regard to your Country, which lies bleeding under these dreadful Extremities, bring the King to his just and undoubted Right. That is the only Way to be freed from these Misfortunes, and to secure all those Rights and Privileges which are in Danger at present. King James has promis'd to protect and defend the Church of England; He has given his Royal Word to consent to such Laws, which you your selves shall think necessary to be made for its Preservation. And his Majesty is a Prince of that Justice, Vertue and Honour, that you have no manner of Reason to doubt the Performance of his Royal Promise. He studies nothing so much as how to make you all Easy and Happy; and whenever he comes to his Kingdom, I doubt not but you will be so.

REMARKS.

This Paragraph continues Parson *Paul*'s rebellious Declamation, which is very well adapted to the Cause he dy'd for. 'Tis the Encomium of a false Prophet upon a spurious and counterfeit Prince, who stands attainted by our Laws as an Impostor. But were it otherwise, the Parson dies with a Lye in his right hand as to the Character of his pretended King: for the World knows, that instead of giving that Security which the Parson promises in his Name for the Church of *England*, he would not so much as take an Oath for supporting the Traitor's dear Brethren, the Nonjuring Episcopal Party in *Scotland*; in which perhaps he was right, since a *Nonjuring Church* ought to have a *Nonjuring King*. Nay, he would not so much as countenance the Church-of-*England* Liturgy with his Presence, because he lik'd the *Mass* in *Latin* better. In short, there wanted nothing to make this Paragraph a compleat intelligible Lye, but that the Parson, to the Qualities of Justice, Vertue and Honour, which he ascribes to his King, should have added *Valour*; a Quality as applicable to a finish'd Coward, as those of Vertue, Honour, and Justice are to one bred up in the Idolatry of *Rome*, and the Tyrannical Maxims of *France*: and that this is the Pretender's Character, we can prove by Queen *Anne*'s Speech to Parliament in 1708.

The SPEECH.

I shall be heartily glad, good People, if what I have said has any effect upon you, so as to be instrumental in making you perform your Duty. It is out of my power now to do any thing more to serve the King, than by employing some of the few Minutes I have to live in this World, in praying to Almighty God to shower down his Blessings Spiritual and Temporal upon his Head, to protect him and restore him, to be favourable to his Undertaking, to prosper him here, and to reward him hereafter. I beseech the same Infinite Goodness to preserve and defend the Church of England, and to restore it to all its just Rights and Privileges: and lastly, I pray God have mercy upon me, pardon my Sins, and receive my Soul into his everlasting Kingdom; that with the Patriarchs, Prophets, Apostles and Martyrs, I may praise and magnify him for ever and ever. Amen.

REMARKS.

Had not the High-Church Faction been bred up in as much Ignorance by their Priests, as those of *Rome*, the Parson could never have hop'd that his pitiful Rhapsody would be any way instrumental to make them perform what he calls their Duty; which in plain *English* (as the Act to oblige Papists to register their Persons and Estates, well expresses it) is 'to dethrone and murder his Sacred Majesty, to destroy our present happy Establishment, to settle a Popish Pretender on the Throne, to destroy the Protestant Religion, and cruelly to murder and massacre its Professors.' None but such barbarous Priests as Mr. *Paul* could exhort them to do this, and none but such ignorant Bigots could swallow the Suggestions of Hell as Christian Doctrine: and since this is the way in which the High Church Party, when brought to the Gallows, pretend to forgive their Enemies, we may easily guess at their Clemency, had Heaven, for our Sins, have suffer'd their Arms to prevail.

The Prayers of the Parson's last Minutes for the Pretender, are answerable to Mr. *Paul*'s Behaviour during the Course of his Life. It would seem however, that he had forgot the Order of the Toasts, which was follow'd by his Brethren in the last Reign, to put the Church before the Queen; for here he has put his King before his Church. But his Prayers are like to be equally effectual in both respects; for God will not hear the

Petitions of those who regard Iniquity in their Hearts, as 'tis plain this Parson did.

He should however have told us what those Just Rights and Privileges are, to which he prays the Church of *England* might be restor'd, or he could not expect our *Amen*. 'Tis certain she enjoys as many Privileges now, and is as well secur'd in them, as she has been at any time since the Reformation. But if he meant that she should be restor'd to all the Church-Lands, which were enjoy'd by the Secular and Regular Clergy in time of Popery; that the Clergy should be Independent on the State, as they pretended to be then, but could never obtain it; that the High-Church Writ, *de Hæretico Comburendo*, should be reviv'd; that some of the Inferior Clergy should sit in the House of Commons, instead of the Popish Priors; that others should sit in the House of Lords, instead of the Mitred Abbots; or, in a word, that it should be in the power of the High-Church Clergy to King and Unking, to Christen and Unchristen whom they pleas'd. If these are the Privileges and Liberties he wants to have restor'd, his Prayers will never be granted by God, because they are contrary to his reveal'd Will, nor listen'd to by *Englishmen*, till they put off human Nature, and degenerate into Brutes.

The Clergyman at last comes to take some Care of his own Soul, and prays that his Sins may be pardon'd, and that he may be receiv'd into the Everlasting Kingdom, among Patriarchs, Prophets, Apostles, and Martyrs: but 'tis observable, that in his whole Speech he does not pray for any one thing thro the Merits of Christ; which shew'd how little he understood the Gospel that he pretended to preach, and gives us too just Ground to conclude, that as he did not live like a Christian, he did not die one.

The SPEECH.

As to my Body, Brethren, I have taken no manner of Care of it: for I value not the barbarous Part of the Sentence, of being cut down and quartered. When I am once gone, I shall be out of the reach of my Enemies; and I wish I had Quarters enough to send to every Parish in the Kingdom, to testify that a Clergyman of the Church of England was martyr'd for being Loyal to his King.

July 13. 1716.

William Paul.

REMARKS.

Here he tells us he had taken no manner of Care of his Body, and it is plain, by his Speech, he took as little of his Soul, since he dy'd with Malice in his Heart, and a Lye in his Mouth; as appears plain, if we compare his Speech with the following Letters, which he wrote to the Archbishop of *Canterbury*, and the Lord *Townshend*.

The Conclusion of this Paragraph is so very extravagant and hypocritical, considering the Submissions which he made to the present Ministry, that it cannot but strike the Reader with Horror, to think that one who valu'd himself upon his Sacred Function, should dare thus to prevaricate in sight of God's Tribunal; before which he was so quickly to appear.

Since Mr. *Paul* regrets, that he had not Quarters enough for every Parish in the Kingdom, to testify that a Clergyman of the Church of *England* (he means his Nonjuring Church) was martyr'd for being Loyal to his King; I shall add no more but a hearty Wish, that his Incorrigible Brethren in Rebellion or Perjury, be they Clergy or Laymen, may fall by the hands of Justice to supply that Defect.

The two following Letters were written by Mr. *William Paul* on the 9th of July, to His Grace the Lord Archbishop of *Canterbury*.

May it please your Grace,

‘**A**TT my Tryall I thought I had a very good Plea, but was advis'd by the Lawers, as the suerest way to obtain Mercy, to plead guilty, upon which I threw my self wholly upon the King's Mercy. What Confession the Court would have from me, I can't tell; I am sure your Grace would not have me for the World spake more than I know. I declare before Almighty God, upon the Word of a Clergyman, I never brought any Letter out of *Preston*, or went to any one Gentleman, or spoke the least thing that tended that Way, viz. to Rebellion, but came into my own Country, as fast as I could, and so to *London*, where I was seizd and sent to *Newgate*. I humbly desire your Grace once more to believe me, and to use your utmost Endeavours to save a poor Clergyman's Life: If it will not be granted to spend the

Remainder of it in *England*, I beg you'll be pleas'd to send me to the Plantations, or any where rather than *Tyburn*. I humbly desire your Grace to consider your poor afflicted Servant, and take him from this nasty Prison.

‘My Lord,
‘I am your Lordship’s most Humble,
‘and most Obedient Servant,
William Paul.

‘My Lord, I never did, since I was in *Newgate*, pray for the Pretender by any Name or Title.’

My Lord,

‘**I** BEG pardon for troubling your Grace, but presuming upon your Goodness once again, humbly desire you to interceed with his Royal Highness for Mercy. The dead Warrant is come down for Execution Friday next: What ill Steps I have made in my Life past, I hope Almighty God will forgive me; but the things that are laid to my charge, viz. preaching up Rebellion, advising my Parishioners to take up Arms, and that I preachd severall seditious Sermons, all which are faulse upon the Word of a Clergyman, as I have a Certificate to prove, for six Years, the time of my being att *Orton*, handed by most of the Parish. Another thing is objected against me, that I was concern’d in sevrall Consultations, but I am inocent and ignorant, I cal God to witness, of any Design that was formd in any Part of the Kingdome against the Government; and if ever I knew of any Meeting, but where I was unfortunatly at *Preston*, or Consultation, or ever ask’d or advis’d any Body to rise in Rebellion, I am willing to suffer.

‘I desire your Grace will endeavour to save me this time from that ignominious Death of the Halter, and dispose of me in what Part your Lordship pleaseth. If nothing can be done, I humbly desire your Lordship’s Blessing and Prayers for Patience and Courage in this severe time of Tryall. For God sake, my Lord, do what lyes in your power to save the Life of a poor afflicted Clergyman, the remaining Part of which shall be

spent in Prayers for your Grace, and all that endeavour'd to bring me out of these great Troubles.

‘My Lord,
‘I am your Lordship’s most Humble
‘And most Obedient Servant,
William Paul.

Newgate,
9th July.

The following Letter was written by *William Paul*, the Night before his Execution, to the Right Honourable the Lord Viscount *Townshend*.’

My Lord,

‘**M**R. *Patten* was so kind to pay me a Visit in my Affliction, and desired me if I knew any thing relating to the Government, I would declare it. My Lord, I solemnly declare, I call Almighty God to witness, I carried no Letter of from *Preston*, tho I told Mr. *Patten* so, which was only a Faint that I might go of; and if Mr. *Patten* will do me justice, he can tell your Lordship how uneasy I was when I discoverd my Rashness. My Lord, I depend soely upon your Lordship’s Goodness in this my miserable Condition. I wish my Lord, I could have my Life saved, that I might shew to the World how heartily I am sorry for all my past Errours; and no Man shall demonstrate it more, then

‘My Lord,
‘Your Lordship’s most Humble,
‘And most Obedient Servant,
William Paul.

‘My Lord, Mr. *Patten* sayth it is an Aggravation to my Crime, that I pray’d in expres Terms in *Newgate* for the Pretender by the Name of K. *James*, I declare I never did. I once more crave your Lordship’s kind Assistance to procure me my Life.’

REMARKS *on the Speech of John Hall, Esq;*

THE last Sentiments of these two Traitors are so much alike, and there is such a Harmony betwixt them in Matter, that the Reflections on the former exhaust all that is material in the latter; so that I shall only take notice of what is peculiar in Mr. *Hall's*, or that is applicable to his particular Case.

The SPEECH.

Friends, Brethren, and Countrymen; I am come here to die for the sake of God, my King, and my Country; and I heartily rejoice that I am counted worthy of so great an Honour: for let not any of you think that I am come to a shameful and ignominious End. The Truth and Justice of the Cause, for which I suffer, makes my Death a Duty, a Vertue, and an Honour. Remember that I laid down my Life for asserting the Right of my only Lawful Sovereign, King James the Third; That I offer my self as a Victim for the Liberties and Happiness of my dear Country, and my beloved Fellow-Subjects; That I fall a Sacrifice to Tyranny, Oppression and Usurpation. In short, consider that I suffer in defence of the Commands of God, and the Laws and Hereditary Constitution of the Land: and then know and be assur'd that I am not a Traitor, but a Martyr.

REMARKS.

This unfortunate Gentleman sets out with a vile hypocritical Rhodomontade: he asserts, that he came to die for the sake of God, his King, and his Country; but 'tis certain, that had his Applications to the present Government for a Pardon succeeded, he must, according to this Principle, have liv'd in such a manner as was quite opposite to what he pretended to die for: which is so horrid, that I may well be excus'd from saying any thing further about it, since the Antithesis must be obvious to every Reader.

How much he counted it his Honour to die for the Pretender's Cause, I shall not say; but I am well assur'd, that he employ'd all his Friends to do their utmost for saving his Life, and obtested them to do it, as they had any

regard to the Blessings of himself, his Wife, and five Children. And I am satisfy'd, that the Reverend Mr. *Patten* will own to the World, if it be requir'd, that Mr. *Hall*, in order to save his Life, would have had Mr. *Patten* declare to the Court, that he the said Mr. *Hall* was mad; which he thought was as good a Plea for an *English* Squire, as for a *Scotch* Earl. This makes his End truly ignominious and shameful, and shews that he had no such Opinion of the Truth and Justice of the Cause for which he suffer'd, as to make his Death a Duty, Vertue and Honour, till he found he must come to the Gallows, and there he sets up for a Hero and a Martyr.

Mr. *Hall*, having acted as a Justice of Peace under the present Government till the Rebellion broke out, ought to have had some knowledg of the Law; and therefore we might have expected some Reasons from the Statute Book, why he calls the Pretender his only Lawful Sovereign: but 'tis probable he knew, that 'twas not to be done, and therefore thought it enough to pawn his bare Assertion upon the Jacobite Mob for *Law*, as his Fellow-Sufferer the Clergyman did his for *Gospel*. 'Tis evident, that both their Talents were better adapted to Rail, than to Reason; otherwise, the one would have given us a Text, and the other a Statute, to prove that they suffer'd in defence of the Laws of God and the Land: but since neither of them have done it, and that none of the Party either has been, or will ever be able to do it for them, we have reason to conclude, that they dy'd Traitors, but not Martyrs.

Those who have read the Old and New Testament with Attention, must certainly be satisfy'd, that there is not one Word in either for a Divine Indefeasible Hereditary Right in any Person or Family to Government; but on the contrary, that our Saviour, the Prophets, and Apostles, taught Obedience to such Governments and human Constitutions, as were in being at the respective times when they liv'd; and laid their Followers under no other Restriction, as to their Obedience to the Superior Powers they found in the World, but to obey God rather than Man, when their Commands interfered.

As to the Laws of *Great Britain*, our Adversaries will never be able to prove any other Hereditary Right than what was deriv'd from those Laws; which being alterable, according to the Nature of all human Constitutions, succeeding Generations must always, according to the Laws of Nature and Reason, have the same power to alter them for their own Security, as their

Ancestors had to enact them for theirs. If this be not allow'd, this Absurdity must naturally follow, that had any preceding King and Parliament made an Act that all their Successors shou'd be Pagans, Papists, Turks, or Slaves, we had been left without a Remedy.

The SPEECH.

I declare that I die a true and sincere Member of the Church of England; but not of the Revolution Schismatical Church, whose Bishops have so rebelliously abandon'd the King, and so shamefully given up the Rights of the Church, by submitting to the Unlawful, Invalid, Lay-Deprivations of the Prince of Orange. The Communion I die in, is that of the True Catholick Nonjuring Church of England; and I pray God to prosper and increase it, and to grant, if it be his good pleasure, that it may rise again and flourish.

REMARKS.

This is so much of a piece with what Parson *Paul* said in his Speech, that I need say little more upon it: only Mr. *Hall* says, that the Rights of the Church were given up by the Submission of the Bishops and Clergy to the Unlawful Invalid Lay-Deprivations of the Prince of *Orange*.

The Church of *England* used formerly, when charg'd with being *Erastian* in her Constitution, to alledg that it cou'd not be so, since the Sovereign of *England* was *mixta Persona*, and by consequence a Clergyman as well as Layman. But tho the High-Church has thrown up that Argument, 'tis plain from the Statutes quoted in answer to Mr. *Paul*, that by the Laws of *England* our Sovereign is made Head of the Church; and from him the Bishops and Clergy of *England* do immediately derive all their Ecclesiastical Power and Authority. And since it was the Parliament of *England* which invested our Princes with the Power of conferring that Authority, King *William* was as lawfully possess'd of it as any of his Predecessors.

But farther, since all the Episcopal Power which the Bishops of *England* can pretend to, is deriv'd from Laymen (if the King and Parliament must be call'd so) it follows in Reason, that a Lay-Deprivation is sufficient to make void a Lay-Institution, if the Deprivation be founded on a just Cause, as disowning the Government certainly is. Besides, it ought to be consider'd,

that the Bishops who sit in Parliament are Clergymen; and since they consented to the Deprivation, it can't in Justice be wholly call'd a Lay one, unless they had protested against it in Convocation, where they sit as Clergymen: and that they did not so protest, is evident to all the World.

'Tis observable, that Mr. *Hall* adds Catholick to Mr. *Paul's* Epithet of the Nonjuring Church of *England*; so that at last the Justice and the Clergyman wou'd bring us to the Church of *Rome*, which is the only Church pretending to be Catholick, that the Nonjuring Church agrees with.

The SPEECH.

I heartily beg Pardon of all whom I have in any manner, and at any time injur'd or offended. I do particularly implore Forgiveness of God and my King, for having so far swerv'd from my Duty, as to comply with the Usurpation, in swearing Allegiance to it, and acting in publick Posts by the Usurper's Commissions, which were void of all Power and Authority. God knows my Heart, I did this at first thro Ignorance and Error; but after I had recollected my self, and inform'd my Judgment better, I repented, and drew my Sword for the King, and now submit my self to this violent Death for his sake. I heartily pray God, my Penitence and my Sufferings may atone for my former Crime. And this I beg thro the Merits, Mediation, and Sufferings of my dearest Saviour, Christ Jesus.

REMARKS.

By this Paragraph we may see whether Mr. *Hall* was a sincere Member of the Nonjuring Church or not. He owns, that he had sworn Allegiance to what he calls the Usurpation, and acted in publick Posts by Commission from it. This is a plain Proof that he was an *Abjuror* instead of a *Nonjuror*, until the Rebellion broke out; and then to make himself a sincere Nonjuror, he became a *Perjuror*; and contrary to his Allegiance, which he had sworn from time to time while a Justice of Peace, he drew his Sword against the King from whom he held his Commission.

He pretends to excuse himself, by saying that his Submission to the Revolution Government proceeded at first from Ignorance and Error; but after he had recollected himself, and inform'd his Judgment better, he repented, and drew his Sword for the King, meaning the Pretender. 'Tis worth while to observe, how much time Mr. *Hall* took to recollect and

inform himself better. It certainly was not much, for at the very time when the Rebellion began, he was sitting with other Justices in Commission, at the Quarter-Sessions in *Northumberland*; and he pretended at his Tryal, that he was taken Prisoner by the Rebels in his Return from the Quarter-Sessions. By this we may easily know what to think of his *Recollection* and *better Information*. I shall say no more to this Paragraph, but that Mr. *Hall* seems to have dy'd as bad a Protestant as a Subject, since he joins his own Repentance and Sufferings to the Merits and Sufferings of our Saviour, as the Foundation of his Hopes for Mercy: which, with what has been observ'd already in Mr. *Paul's* Speech, may serve to convince the World what sort of Protestants our High-Church-Men are.

The SPEECH.

I do sincerely forgive all my Enemies, especially those who have either caus'd or increas'd the Destructions in Church or State. I pray God have mercy upon them, and spare them, because they are the Work of his own Hands, and because they are redeem'd with his Son's most precious Blood. I do particularly forgive, from the bottom of my Heart, the Elector of Brunswick, who murders me; my unjust pretended Judges and Jury, who convicted, and condemn'd me; Mr. Patten and Mr. Carnaby, Evidences who swore against me at my Trial. And I do here declare, upon the Words of a dying Man (and all my Northumberland Fellow Prisoners can testify the same) that the Evidence they gave was so far from being the Truth, the whole Truth, and nothing but the Truth, that in relation to my Indictment they swore not one true thing against me, but many absolute Falshoods. I pray God forgive them, for I am sure I do.

REMARKS.

His way of forgiving his Enemies is much the same with Parson *Paul's*. Here his Folly and Malice are equally conspicuous; for in this Paragraph he charges the Evidence against him with swearing falsly; whereas in that immediately preceding, he owns the Truth of what is sworn in the main, by confessing that he drew his Sword for King *James*, which is a sufficient Vindication of the Evidence.

The SPEECH.

Lastly, I forgive all who had any hand in the Surrender at Preston; for they have surrender'd away my Life: and I would to God that were the only bad Consequence of it. But alas, it is too plain, that the Surrenderers not only ruin'd many of his Majesty's brave and faithful Subjects but gave up their King and Country into the Bargain. For it was then in their power to have restor'd the King with Triumph to his Throne; and thereby to have made us a happy People. We had repuls'd our Enemies at every Attack, and were ready, willing, and able to have attack'd them. On our side even our common Men were brave, courageous and resolute; on the other hand, theirs were directly the contrary: insomuch that after they had run away from our first Fire, they could never be brought so much as to endeavour to stand a second. This I think my self oblig'd in Justice to mention, that Mr. Wills may not impose upon the World, as if he and his Troops had conquer'd us, and gain'd the Victory: for the truth is, after we had conquer'd them, our Superiours thought fit to capitulate, and ruin us. I wish them God's and the King's Pardon for it.

REMARKS.

This Paragraph is such a fulsom and flagrant Lye, that it would seem the Devil ow'd him a shame. To publish an Untruth of this nature, in view of the Bar of Heaven, proves the poor Man, or at least his Speech-makers, to have been more than case-harden'd. What the Design of the Faction could be, in handing such a Story as this to the World, which can be contradicted by Thousands of Eye-Witnesses, and by Mr. *Hall's* Fellow-Rebels as well as by the King's Troops, is not easy to be imagin'd; unless it be to spirit up the Faction to a new Rebellion, by telling them, that their Friends were Conquerors, but unhappily betray'd into a Surrender by their Leaders. Had this been true, what Fools must their Generals *Forster* and *Mackintosh* be to fly from a Government, where they had so much Merit to plead, to another which will certainly hang them, if Mr. *Hall's* Accusation obtain Belief? One would be tempted to think, that when Mr. *Hall* read or sign'd this Speech, he did not expect to have been hang'd, but to have been rescu'd by the Jacobite Mob, and to have set himself at their Head as General; a Post which (if he says true) he certainly deserv'd much better than Lord *Derwentwater*, Lord *Kenmure*, or Messieurs *Forster* and *Mackintosh*. But be that how it will, if the Rebels make another Attempt, 'tis probable this scandalous Reflection may put our Generals and Soldiers upon another

Method of managing the War, than to content themselves with the Surrender of the Jacobites at Discretion: and of what Service Mr. *Hall's* Speech may be to his Party in this Case, they themselves are left to judg.

The SPEECH.

May it please the Almighty to bless, preserve, and restore our only Rightful and Lawful Sovereign, King James the Third! May he direct his Councils, and prosper his Arms! May he bring him to his Kingdom, and set the Crown upon his Head! May he protect him from the Malice of his Enemies, and defend him from those who for a Reward would slay him innocent! May he grant him in Health and Wealth long to live! May he strengthen him, that he may vanquish and overcome all his Enemies! And finally, when it pleases his infinite Wisdom to take him out of this World, may he take him to himself, and reward him with an everlasting Crown of Glory in the next!

REMARKS.

All that I shall say to this Paragraph, is, that the Prayers of the Worshipful Justice, and the Reverend Parson, are much of the same Strain, and, no doubt, they'll meet with the like Answer. Indeed the Justice appears to have been the better Churchman of the two, for he prays for the Church in his second Paragraph, and puts off his Prayers for the King almost till the last; and the Parson shews himself to have been a better Lawyer than the Justice, because he prays for his King first, as the Head of his Church.

The SPEECH.

These, my beloved Countrymen, are the sincere Prayers, these the last Words of me, who am now a dying Person. And if you have any regard to the last Breath of one who is just going out of the World, let me beg of you to be dutiful, obedient, and loyal to your only Sovereign Liege Lord, King James the Third: be ever ready to serve him, and be sure you never fail to use all your Endeavours to restore him; and whatever the Consequence be, remember that you have a good Cause, and a gracious God, and expect your Recompence from him.

To that God, the God of Truth and Holiness, the Rewarder of all who suffer for Righteousness sake, I commend my Soul; beseeching him to have

mercy upon it, for the sake of my dear Redeemer, and merciful Saviour, Jesus Christ, our Lord. Amen. Amen. Amen.

July 13. 1716.

John Hall.

REMARKS.

The Justice agrees with the Parson in his Attempts to excite the Jacobites to a new Rebellion; but the Justice has fallen upon the luckier Argument of the two, because, in a former Paragraph, he encourages them with the News of a Victory, which it seems the Parson knew nothing of, tho present in the Field of Battle, and never saw any Marks of Triumph on that account, till he and his Brother Justice came to rejoice together for it at the Triple-Tree. The Justice however dy'd the best Protestant, because he begs pardon for the sake of his Redeemer, and does not seem to rely altogether upon his own Merits, as the Parson did.

POSTSCRIPT.

I might reasonably have expected my Life would have been saved, since I had obtained five Reprieves: but I find that the Duke of Hannover, and his Evil Counsellors who guide him, have so little Virtue and Honour themselves, that they are resolv'd not to spare my Life, because I would not purchase it upon base and dishonourable Terms. I have reason to think, that at first I could have secur'd both Life and Fortune, if I would have pleaded Guilty; and I doubt not but I might since have obtain'd Favour, if I would have petition'd in a vile scandalous manner. But I was resolv'd to do nothing whereby I should have disown'd my King, and deny'd my Principles: and I thank my good God, both for inspiring me with this holy Resolution, and for giving me the Grace to perform it.

July 13. 1716.

John Hall.

REMARKS.

This is so malicious and silly, that it carries its Antidote along with it. He was oblig'd to the Government for five Reprieves, and if we may believe what he says, 'tis entirely owing to himself that he did not obtain a Pardon, because he would not petition. 'Twas highly reasonable then, that

when Mercy wou'd not do, Justice shou'd take place. 'Tis certain, that a Petition for Mercy cou'd be nothing so vile, as forfeiting his Life by Perjury and Rebellion. But by this we see what aukard Notions our Jacobites have of what they call Honour.

I shall conclude the whole with observing, that these two Speeches are enough to convince the World, that the Oaths of the High-Church Party are not to be trusted while living, nor their Speeches when dead.

FINIS.

Transcriber's Notes

Obvious typographical errors have been silently corrected. Variations in hyphenation and accents have been standardised but all other spelling and punctuation remains unchanged.

*** END OF THE PROJECT GUTENBERG EBOOK REMARKS ON
THE SPEECHES OF WILLIAM PAUL CLERK, AND JOHN HALL OF
OTTERBURN, ESQ ***

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